

Suresh Kacharu Aher And Another vs Dipak Bhaurao Deshmukh on 12 January, 2026

2026:BHC - AUG:1188

(1)

44 cri apln 3044

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

44 CRIMINAL APPLICATION NO. 3044 OF 2025

SURESH KACHARU AHER AND ANOTHER
VERSUS
DIPAK BHAURAO DESHMUKH

.....

Advocate for Applicant : Ms. Jadhao Usha Narayanrao (Through Legal Aid)
Advocate for Respondents : Ms. Renuka Vishnu Ghule

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CORAM : Y.G. KHOBRAGADE, J.

DATE : 12.01.2026

P.C. :-

1. Heard the learned counsel appearing for the applicant and the learned counsel appearing for the non-applicant at length.

2. By the present application under Section 477 of Bharatiya Nagarik Suraksha Sanhita, 2023 (corresponding Section 407 of Cr.P.C.). The applicants prayed for transfer of RCC No.641/2023 pending on the file of the learned JMFC, Ahmednagar to the file of learned JMFC, Niphad on the ground that the RCC No.641/2023 is based on the incident for which the NCR No. 1142/2023 is registered with Topkhana Police Station, Ahmednagar against the present non-applicant for the offence punishable under Section 323, 504, 506 of IPC and for the same incident the present non-applicant has filed a private complaint i.e. RCC No.641/2023 and it is pending on the file of the learned JMFC, Ahmednagar. The learned counsel appearing for the applicant (2) 44 cri apln 3044.25 further canvassed that other four proceedings arising out of the matrimonial relations between the parties are pending before the Court at Niphad, which are as under:

a) Criminal Revision No.11/2023 pending on the file of the learned Additional District and Sessions Judge, Niphad.

b) Cri. M.A. No.27/2023 pending before the learned JMFC, Niphad.

c) M.A. No. 32/2024 for custody of child before the District Court, Niphad.

d) HMP No.66/2023 under the provisions of Section 13 (1) (ia) (ib) of the Hindu Marriage Act.

3. The fact of pendency of said proceedings at Niphad has not been denied by the non-applicant. The fact of pendency of RCC No.641/2023 filed by the non-applicant and pending on the file of the learned JMFC, Ahmednagar arising out of the incident which is reported in NCR No.1142/2023 is not in dispute. Therefore, considering the convenience of both the sides, it would be just and proper to withdraw the RCC No.641/2023 from the file of the learned JMFC Ahmednagar and it is transferred to the file of the learned JMFC, Niphad, District Nashik with immediate effect. The copy of order of this Court be produced before the JMFC, Ahmednagar as well as before the learned JMFC, Niphad.

4. In view of above, the application stands disposed of.

[Y.G. KHOBRADE, J.] mubashir